

Tamil Nadu Electricity Board (Recovery of Dues) Rules, 1979

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State of Tamilnadu- Act

Tamil Nadu Electricity Board (Recovery of Dues) Rules, 1979

TAMILNADU

India

Tamil Nadu Electricity Board (Recovery of Dues) Rules, 1979

Rule TAMIL-NADU-ELECTRICITY-BOARD-RECOVERY-OF-DUES-RULES-1979 of 1979

Published on 14 August 1979

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Tamil Nadu Electricity Board (Recovery of Dues) Rules, 1979

Published vide Notification No. G.O. Ms. No. 1464, P.W. (Electricity), Dated 14th August 1979 - SRO A-CC7(A)/79, w.e.f. 18.8.1979

G.O. Ms. No. 1464. - In exercise of the powers conferred by sub-section (1) of section 7 read with clause (4) of section 2 and sub-section (1) and clause (b) of sub-section (2) of section 3 and section 4 of the Tamil Nadu Electricity Board (Recovery of Dues) Act, 1978 (Tamil Nadu Act 29 of 1978), the Governor of Tamil Nadu hereby makes the following rules:

1.

Short title.

- These rules may be called the Tamil Nadu Electricity Board (Recovery of Dues) Rules, 1979.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

The "Act" means the Tamil Nadu Electricity Board (Recovery of Dues) Act, 1978 (Tamil Nadu Act 29 of 1978);

(b)

"Annexure" means an Annexure to these rules;

(c)

"appellate authority" means an officer specified by the Tamil Nadu Electricity Board under clause (a) of sub-section (2) of section 3 of the Act;

(d)

"appeal" means an appeal to be filed within the time limit prescribed under rule 5;

(e)

"Board" means the Tamil Nadu Electricity Board constituted under section 5 of the [Electricity (Supply) Act, 1948 (Central Act LIV of 1948)]

[This Act has been repealed. Now see Electricity Act, 2003 (Central Act 36 of 2003)]

; and

(f)

"prescribed authority" means the persons or authority appointed under rule 3.

3.

Persons or authority to be prescribed authority.

- The Assistant Accounts Officers of the Revenue Units of the Board shall exercise the powers and perform the functions of the prescribed authority in their respective jurisdictions in respect of Low Tension bills. The Superintending Engineers of the Board shall exercise the powers and perform the functions of the prescribed authority in their respective jurisdictions in respect of High Tension bills and other dues.

4.

Procedure for serving the bill on consumers.

- The bill shall be served in person or by registered post with acknowledgement due to the address of the consumers indicated in the agreement which he executed With the Board. When the bill is served in person and if he is not present the bill shall be served to the adult member of his family or to his authorised agent. If he or the adult member of the family or his authorised agent refuses to receive the bill, it shall be affixed in a conspicuous part of his residence or of his last known residence or in some other conspicuous place of the locality, with the signature of at least two literate residents of that locality.

5.

Period within which an appeal has to be preferred.

- The appeal shall be preferred within thirty days from the date of service of the bill.

6.

Procedure to be followed by the appellate authority.

- The procedure to be followed by the appellate authority while deciding the appeal under clause (a) of sub-section (2) of section 3 of the Act shall be as follows: -

(1)

If an appeal is filed by a debtor against the decision of the prescribed authority, the appellate authority shall issue a notice by registered post with acknowledgement due to the prescribed authority, sending a carbon copy of the appeal filed by the debtor to show cause within thirty days from the date of receipt of the notice as to why the appeal filed by the debtor should not be allowed, failing which the appeal shall be disposed of ex-parte.

(2)

The appellate authority shall specify in the notice that he shall conduct an inquiry in the presence of the debtor or his authorised agent or his counsel and the prescribed authority, at the place and the time, as may-be specified therein, regarding the liability of the debtor to pay the whole or part of the dues specified in the bill, with oral and documentary evidence and record his decision; and

(3)

The decision of the appellate authority shall be communicated within thirty days from the date on which the inquiry was

conducted to the debtor and the prescribed authority by registered post with acknowledgement due.

7.

Form of notice of demand for dues and penalty not paid.

- A notice of demand under section 4 of the Act specified in the Annexure shall be issued by registered post with acknowledgment due, stating the name of the debtor, the amount payable by him on account of various dues, penalty and the costs of recovery.

Annexure

(see rule 7)

Notice of Demand Under Section 4 of The Tamil Nadu Electricity Board (Recovery of Dues) Act, 1978 (Tamil Nadu Act 29 of 1978).

_____Electricity

Station:

Date:

System,

To

Thiru/Thirumathi.....

Please take notice that a sum of Rs.....(Rupees..... only), is due from you by way of consumption of electrical energy supplied/ remuneration rent or other charges for hire etc/price of any goods taken on loan. You are, therefore, required to pay the amount specified in the following statement of account within fifteen days from the date of receipt of the notice failing which action will be taken to recover the amount due under section 6 of the Tamil Nadu Electricity Board (Recovery of Dues) Act, 1978 (Tamil Nadu Act 29 of 1978).

Statement of Account showing particulars of dues to the Board for S.C. No.

Serial No

Description of the amount

Amount Rs. ps.

Total

Total amount in words (Rupees.....)

Prescribed Authority

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